

## IN RE ALLEN

**Case Number: 24PB-0032715**

**Tentative Ruling on Petition to Approve Minor's Compromise:** This Petition for Approval of Compromise of Claim for Minor is a settlement of minor Lakota Allen's claims from an automobile collision on June 5, 2023. The minor's mother, Brandy Lee Manso, was appointed as the minor's Guardian ad Litem on November 27, 2024. California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition and Declaration of Janine A. Mitchell contain the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Hearing is thus needed on the Petition before it can be approved. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will ask counsel to voir dire Petitioner regarding the following: the terms of the settlement and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of deposit. **An appearance by the Petitioner and Petitioner's counsel of record is necessary on today's calendar.**

## MASSETT VS. AMERICAN AUTOMOBILE ASSOCIATION CALIFORNIA STATE AUTOMOBILE ASSOCIATION

**Case Number: 24CV-0206073**

**Tentative Ruling on Motion to Request an Immediate Hearing Before a Judge:** Plaintiff Stacy Massett filed this motion on demand and appears to be seeking an immediate hearing to address Plaintiff's perceived misconduct by court clerks. Specifically, Plaintiff argues that the clerks have rejected Plaintiff's Requests for Entry of Default. The motion does comply with CRC 3.1112 and is therefore defective. The motion is **DENIED** without prejudice for being in an improper format and being procedurally defective. Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare the Order.

The Court has reviewed the filings in this matter and concurs that there is no valid Proof of Service of Summons on file for either named Defendant. While the Court cannot give legal advice, the Court can provide general law and will do so in this case.

A Proof of Service of Summons (Judicial Council Form POS-010) must be complete and the name of the Defendant being served must match the name listed in the Complaint. The Defendants in this matter are listed as "California State Automobile Association (CSAA)" and "American Automobile Association (AAA)." When serving an entity (as opposed to an individual), Item 3.a. is where the Defendant is listed and 3.b. is where the person served on behalf of the entity is listed. It appears that the named Defendants may be corporations. If so, CCP § 416.10 would apply.

A summons may be served on a corporation by delivering a copy of the summons and the complaint by any of the following methods:

- (a) To the person designated as agent for service of process as provided by any provision in Section 202, 1502, 2105, or 2107 of the Corporations Code (or Sections 3301 to 3303, inclusive, or Sections 6500 to 6504, inclusive, of the Corporations Code, as in effect on December 31, 1976, with respect to corporations to which they remain applicable).
- (b) To the president, chief executive officer, or other head of the corporation, a vice president, a secretary or assistant secretary, a treasurer or assistant treasurer, a controller or chief financial officer, a general manager, or a person authorized by the corporation to receive service of process.
- (c) If the corporation is a bank, to a cashier or assistant cashier or to a person specified in